

# The Vizagapatnam Harbour Craft Rules, 1950

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India

The Vizagapatnam Harbour Craft Rules, 1950

Rule THE-VIZAGAPATNAM-HARBOUR-CRAFT-RULES-1950 of 1950

Published on 1 December 1950

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The Vizagapatnam Harbour Craft Rules, 1950

Published vide Notification Gazette of India, 1950, Part 2, Section 3, page 1035

1735.

S.R.O. 1019, dated 1st December, 1950. - In exercise of the powers conferred by Cl. (k) of sub-section (1) of Sec. 6 of the Indian Ports Act, 1908 (15 of 1908) and in supersession of all previous rules on the subject in force at the Port of Vizagapatnam, the Central Government is pleased to make the following rules, the same having been previously published as required by sub-section (2) of the said section:

1.

Short title and application.

(1)

These Rules may be called the Vizagapatnam Harbour Craft Rules, 1950.

(2)

They shall apply to the Port of Vizagapatnam.

2.

Definitions.

- In these rules, unless the context otherwise requires :

(a)

"Deputy Port Conservator" means the Deputy Port Conservator, Vizagapatnam Port, Vizagapatnam;

(b)

"Form" means a form appended to these rules;

(c)

"harbour craft" means any catamaran plying for hire; or any flat or cargo, passenger or other boat plying whether for hire or not and whether power driven or by oars; and whether regularly or only occasionally in, or partly within and partly without, the Port;

(d)

[ "Licensed harbour craft" means any harbour craft licensed under these Rules; (e) "Motor boats" means any power driven harbour craft propelled wholly or in part by any form of electrical or mechanical power other than steam;

[Substituted by S.R.O. 614, dated 28th March, 1952]

(f)

"outer harbour" means that part of the creek which lies South and East of a line drawn from East to West Ferry landing to a line drawn across the creek at 2,500 E Harbour Co-ordinates;

(g)

"inner harbour" means that part of the Port which lies to the North and West of the above line, drawn from East to West Ferry landing and includes the Turning Basin, Docks, North Western Arm, Naval Basin and Southern Lighter Canal;]

(h)

"owner" used in relation to harbour craft includes any part owner, agent or mortgagee in possession thereof;

(i)

"Port" means the Port of Vizagapatnam;

(j)

"Roads" means that part of the Port which lies to seaward of the line drawn across the creek at 2,500 E Harbour Co-ordinates;

(k)

"Servant" used in relation to owner includes the tindal or any boat-man; (l) "Steam-boat" means any harbour craft propelled wholly or in part by steam power;

(m)

"Tindal" includes any person in charge of a Harbour Craft.

3.

Harbour Craft to be licensed.

-No person shall, whether as owner, tindal or servant use any harbour craft to carry goods or passengers to or from any vessel at the port or from place to place within the port unless the harbour craft has been duly licensed under these rules. A harbour craft licensed to ply between ship and shore may also ply from place to place within the Port without a separate license :

Provided that nothing in this rule shall apply to

(a)

any boat forming part of the equipment of a ship or steamer;

(b)

any harbour craft maintained solely for purpose of pleasure :

Provided further that the Deputy Port Conservator may, if he thinks fit, withdraw exemption in respect of any such boat or harbour craft as is mentioned in Cl. (a) or Cl. (b) of the preceding proviso.

4.

Licensing of Harbour Craft.

(1)

Every application for the licensing of a harbour craft under rule 3 shall be made to the Deputy Port Conservator in writing and shall contain the following particulars :

(a)

' the owner's name and address in full and if the owner is a minor, the name and address of his guardian also;

(b)

the name and address of the agent, if any, duly authorised by the owner to act on his behalf;

(c)

the name of the tindal whom the owner proposes to place in charge of the harbour craft; and

(d)

the nature of the license required, i.e., whether it is required for a passenger boat or for a cargo boat, or for a passenger and cargo boat.

(2)

On receiving an application for licence under sub-rule (1), the Deputy Port Conservator shall survey and measure the harbour craft, or cause it to be surveyed and measured in the presence of the owner or of any person duly appointed for the purpose by such owner, and grant a licence in Form A, on being satisfied that the craft is seaworthy and fit for service at the Port, or upon the production of a certificate in writing from the Officer who surveyed the craft certifying:

(a)

that such craft is seaworthy, properly equipped and suited for the purpose for which the licence is required;

(b)

the number of passengers that such craft is capable of carrying under all conditions;

(c)

the number of crew required for the safe navigation of such craft;

(d)

that the equipment of such craft is in good order and condition.

(3)

For purposes of the survey and measurement prescribed in sub-rule (2) the owner shall cause the harbour craft to be brought to such place as the Deputy Port Conservator may appoint.

(4)

Subject to the provisions of these Rules, all licenses in Form A shall be valid for the official year ending 31st March.

5.

Minor or Female owners.

- If the owner of a harbour craft is a minor, the licence may be obtained by the guardian of the minor. If the owner is a woman, who, according to the custom of the country, does not appear in public, the licence may be obtained on her behalf by her duly authorised agent. In such cases the guardian or the agent shall be deemed to be the owner for the purposes of these rules.

6.

Licence, rules, etc., to be produced when demanded.

(1)

The licence of every harbour craft shall be kept in the possession of the tindal, who shall produce the licence whenever called upon to do so by the Deputy Port Conservator or by any person duly authorised by the Deputy Port Conservator in that behalf.

(2)

A copy of these rules and of any written directions issued by the Deputy Port Conservator for carrying the same into effect shall also be furnished by the owner to the tindal who shall, on demand, show them to any consignor, or passenger by such harbour craft. The owner shall be responsible for securing that the tindal understand the said rules and directions for obtaining a declaration from him to that effect and for producing such declaration whenever required by the Deputy Port Conservator.

7.

Distinctive numbering of licensed harbour craft.

(1)

The owner of a licensed harbour craft shall paint or cause to be painted upon a black ground, in white, English figures

not less than six inches in length, on a conspicuous part of the bow of such harbour craft on one side and of the quarter on the other, the number of the harbour craft as mentioned in the licence.

(2)

No person shall paint or cause to be painted or counterfeited upon any harbour craft not duly licensed under rule 4, any such number as aforesaid or any other mark likely to induce the belief that such harbour craft has been so licensed.

8.

**Change of Ownership or control of Licensed Harbour Craft.**

- Where the holder of a licence in Form A transfers the ownership of the Harbour craft to another person, the licence shall cease to be valid on the expiry of six days from the date of such transfer; and where such holder mortgages the harbour craft to, or places it under the control of another person, the licence shall cease to be valid on the expiry of six days from the date of such transfer unless an endorsement on the licence is made by the Deputy Port Conservator that notwithstanding the transfer, the licence shall continue to be valid.

9.

**Changes in crew or carrying capacity of Licensed Harbour Craft to be reported.**

- Whenever the tindal of any licensed harbour craft is changed or any alteration in such craft is made so as to affect any of the particulars contained in the licence granted for it, such change or alteration shall forthwith be reported by its owner to the Deputy Port Conservator. Provided that, if such change or alteration takes place, at a time when the harbour craft is away from the Port, it may be reported immediately on the return of the harbour craft to the Port. In case of change of tindal or of any alteration in the harbour craft not affecting its carrying capacity the harbour craft shall not ply until such report is made, and in case of change of tindal until the tindal has also been produced before the Deputy Port Conservator. On such report or on such report and production, as the case maybe, the Deputy Port Conservator shall amend the original licence held by the owner and in case of change of tindal, the register kept under rule 10.

In case of any alteration in the harbour craft affecting its carrying capacity, the original licence held by the owner shall be cancelled and a fresh licence issued by the Deputy Port Conservator after the craft has been remeasured, and the harbour craft shall not ply until such fresh licence has been issued.

10.

**Registration of Tindals.**

(1)

At the time of licensing of any harbour craft under rule 3 the name of its tindal as entered into the licence and other particulars relating to him shall be entered into a book which shall be kept by the Deputy Port Conservator in Form B.

(2)

Every year in the month of March on a date to be fixed by the Deputy Port Conservator the owner of every licensed harbour craft shall produce before the Deputy Port Conservator the tindal of the harbour craft for verifying the correctness of the entries in the Register :

Provided that if such harbour craft is away from the Port on the date so fixed, the owner shall produce the tindal within 24 hours after its return.

(3)

No person shall be employed or registered as a tindal of a licensed harbour craft if he

(a)

is not a certificated officer qualified to be the master or engineer of such harbour craft in accordance with rule 29;

(b)

is, in the opinion of the Deputy Port Conservator, unaccustomed to the use of such harbour craft for otherwise inefficient.

11.

**Annual and special inspection of Licensed Harbour craft and crew.**

- On or before the expiry of the licence, the owner of every licensed harbour craft shall produce it together with its licence for inspection to the Deputy Conservator at such place as he may appoint for the purpose. In addition to such inspection, special or partial inspections may be held by the Deputy Port Conservator or by any person duly authorised by him, at such times as the Deputy Port Conservator may consider necessary. At all inspections under this rule, each harbour craft shall have its full complement of crew and equipment.

12.

Repairs of Licensed Harbour Craft ordered for inspection.

(1)

The owner of every licensed harbour craft shall execute such repairs thereto as the inspecting officer may direct in order to render it efficient, and no owner or other person shall use any such harbour craft or cause or permit it to be used until such repairs have been duly executed thereto and the Deputy Port Conservator has granted permission for its use. For the purpose of such repairs, the owner shall cause the harbour craft to be hauled up only to such place or places on the foreshore as the Deputy Port Conservator may, from time to time, direct.

(2)

All major repairs to the boiler, machinery, or hull of a licensed harbour craft shall be carried out under the supervision of an Engineer and Ship Surveyor appointed by the Port Conservator. The Master, owner or owners of such craft shall, before the commencement of the repairs, pay the Port Conservator a sum sufficient to cover the fees and other expenses of such Engineer and Ship Surveyor. For the purpose of this sub-rule, the decision of the Port Conservator as to whether a particular work should be regarded as a major repair or not shall be final.

(3)

[ The fees referred to in sub-rule (2) shall be calculated on the following scale, namely:-]

[Substituted by G.S.R. 931, dated 27th May, 1971]

(i)

For every vessel the gross tonnage of which does not exceed 10 tons.

Rs.

75.00

(ii)

For every vessel the gross tonnage of which exceeds 10 tons but does not exceed 25 tons

Rs.

100.00

(iii)

For every vessel the gross tonnage of which exceeds 25 tons but does not exceed 50 tons

Rs.

125.00

(iv)

For every vessel the gross tonnage of which exceeds 50 tons but does not exceed 75 tons

Rs.

150.00

(v)

For every vessel the gross tonnage of which exceeds 75 tons but does not exceed 100 tons

Rs.

175.00

(vi)

For every vessel the gross tonnage of which exceeds 100 tons but does not exceed 300 tons

Rs.

200.00

(vii)

For every vessel the gross tonnage of which exceeds 300 tons but does not exceed 600 tons

Rs.

250.00

(viii)

For every vessel the gross tonnage of which exceeds 600 tons but does not exceed 900 tons

Rs.

300.00

(ix)

For every vessel the gross tonnage of which exceeds 900 tons but does not exceed 1200 tons

Rs.

350.00

(x)

For every vessel the gross tonnage of which exceeds 1,200 tons for every 300 tons or part thereof

Rs.

50.00

(xi)

For interim survey

Rs.

20.00 per visit.

The above fees shall be in addition to the travelling expenses and overtime fees incurred in connection with these surveys.

(4)

The expenses referred to in sub-rule (2) shall be determined in accordance with the instruction of the Central Government in this behalf.

13.

Control of working of Licensed Harbour Craft.

(1)

The owner of every licensed harbour craft shall provide it with such full complement of crew and with such equipment as may be determined by the Deputy Port Conservator and entered into the licence. The Tindal of the harbour craft shall not have on board more or less than the number of the crew prescribed in the licence for fine or rough weather according as the harbour craft plies in fine or rough weather and shall not carry passengers or goods in excess of the number or quantity entered into the licence for the harbour craft.

(2)

Every licensed harbour craft plying within the port shall carry such number of life buoys as may be considered reasonable by the Deputy Port Conservator and of a type approved by him. Every such harbour craft shall carry in addition such buoyant apparatus as may be considered necessary by the Deputy Port Conservator.

All buoys and buoyant apparatus carried in pursuance of this rule shall be stowed to the satisfaction of the Deputy Port Conservator and so as to be readily accessible to the persons on board.

(2a)

[ Every Harbour Craft licensed for the carriage of passengers shall be so fitted that sufficient seating space is available for each passenger, and awnings and weather clothes shall also be provided, where necessary, to give protection to passengers from sun and weather respectively.]

[Inserted by G.s.R. 1106, dated 3rd October, 1959]

[Provided that nothing contained in this sub-rule shall apply to the steam ferry "Tepparevu" carrying passengers within the port in smooth waters between the north and south banks.]

[Inserted by G.S.R. 1415, dated 6th December, 1959]

(3)

The Deputy Port Conservator shall exercise his discretion in fixing the number of crew required in a licensed harbour craft plying within the Port and carrying passengers.

(4)

Where the owner of a licensed harbour craft does not desire to carry the full complement of passengers, or is not

prepared, or considers it impracticable to carry the prescribed life saving appliances the Deputy Port Conservator may endorse the license to the effect that the number of passengers is limited accordingly.

14.

Obstructing Port Traffic.

(1)

No tindal or any member of the crew serving in any licensed harbour craft shall, without reasonable excuse, obstruct or hinder the loading, discharging or service of such harbour craft, or of any other licensed harbour craft, or obstruct or hinder any vessel working in the Port.

(2)

No tindal shall permit any licensed harbour craft in his charge to obstruct the free navigation of the port or the approaches to wharves or jetties.

15.

Observing of the rule of road at sea.

- All licensed harbour crafts, when under way, shall observe the rule of the road at sea.

16.

Refuse to ply without lawful excuse.

- If the owner or the tindal in charge of a licensed harbour craft plying regularly for hire refuses to allow such harbour craft to ply for hire when required to do so, without reasonable excuse, of which the Deputy Port Conservator shall, subject the appeal provided in rule 27, be the sole judge, the licence of such harbour craft shall be liable to be revoked.

17.

Working of the Licensed Harbour Craft at night and in bad weather.

-

(a)

No licensed harbour craft shall ply in the outer roads

(i)

between the hours of 6 P.M. to 6 A.M. without the previous permission of the Deputy Port Conservator.

(ii)

when a storm warning signal indicating bad weather or high seas is displayed from the Port Flagstaff.

(b)

When the signal referred to in sub-clause (ii) of clause (a) is hoisted at the Port Flagstaff, all harbour craft plying in the outer roads shall return to the inner harbour at once and shall not proceed again to the outer roads without the special permission of the Deputy Port Conservator until the signal is hauled down.

18.

Permissible loading of Licensed Harbour Craft in fine and in rough weather.

(1)

No person shall load a licensed harbour craft with passengers or with animals or other cargo in contravention of the terms of its license.

(2)

No tindal of any licensed harbour craft shall permit any animal to be loaded in it, unless the harbour craft has been provided with sand ballast or straw sufficient to form a flat floor and unless such other requirements as may be imposed by the Deputy Conservator in respect of the harbour craft, have been complied with.

(3)

Where animals are carried in a licensed harbour craft, no other cargo or passengers shall be carried therein.

(4)

Passengers and cargo other than animals may be carried at the same time only in a licensed harbour craft propelled by mechanical or electrical power.

19.

Power of tindal to prevent overloading.

- Whenever the number of passengers or the quantity of cargo in a licensed harbour craft exceeds the number or quantity entered into the license, the tindal shall, before starting from the vessel or from the shore, require any passenger to leave the harbour craft or any consignor, consignee, or shipping or landing agent concerned to remove

from the harbour craft the whole or any part of the cargo.

20.

Attention to certain signals required of tindals.

- The owner of every licensed harbour craft shall instruct the tindal of such harbour craft to pay immediate attention to the harbour craft muster flag a square blue flag with four parallel red bars running crosswise which will be displayed on the Port Flagstaff when the Deputy Port Conservator desires to carry out an inspection under Rule 11.

21.

Licensed Harbour Craft not to interfere with mooring or approaching vessels before they anchor.

- No person in charge of or navigating any licensed harbour craft shall attempt to make such harbour craft fast to any mooring or mark buoy, or take it alongside of a vessel approaching an anchorage or mooring before such vessel has come to anchor or been moored to a buoy.

22.

Fishing boats not to be allowed near a cargo boat or alongside a vessel.

(1)

No person in charge of or navigating a licensed cargo boat shall allow a fishing boat to be within ten yards of her when such cargo boat is plying between a vessel and the shore.

(2)

No person in charge of or navigating a fishing boat shall allow it to go alongside a vessel while discharge or shipping of cargo is proceeding.

(3)

If any licensed harbour craft is found by the Deputy Port Conservator to have contravened the provisions of sub-rule (1) or (2) the Deputy Port Conservator may-

(a)

cancel the license issued in respect of the harbour craft.;

(b)

direct that the tindal at fault shall not be employed in any capacity in any licensed harbour craft and that his name shall be removed from the Register of Tindals; and if any owner employs any such tindal contrary to the Deputy Port Conservator's directions under Cl. (b) the Deputy Port Conservator may cancel all or any of the licenses in Form A held by the owner.

23.

Landing and shipping of passengers and goods to be within the Port.

- All passengers and goods shall be landed or shipped in such places within the limits of the Port as the Port Conservator may appoint and no person shall ship or land passengers or goods outside such place unless the sanction of the Port and Customs Officers at the Port has been previously obtained.

24.

Rates of Harbour Craft Hire.

- No owner, tindal or any member of the crew of a licensed harbour craft licensed to carry passengers for hire, and no person deputed by the owner of such harbour craft shall demand from any passenger a rate of hire exceeding that sanctioned by the Central Government and no owner, tindal or member of the crew of such harbour craft shall demand or accept any gratuity or present from any passenger during the course of its trip between any vessel and the shore or from place to place whether within or without the Port.

25.

Prohibition of Employment of Convicted Tindals, etc.

- IF ANY TINDAL OR ANY MEMBER of the crew of a licensed harbour craft is convicted of a breach of any of these rules the owner of the harbour craft shall, on being required so to do by the Deputy Port Conservator dismiss such tindal or member of the crew from his employment.

26.

Revocation of Licenses.

- [(1)]

[Renumbered by G.S.R. 2006, dated 7th November, 1968]

If in the opinion of the Deputy Port Conservator the owner of any licensed harbour craft has contravened any of these



rules, the Deputy Port Conservator may, without prejudice to any other action that may be taken against such owner in respect of the contravention, cancel all or any of the licenses in Form A held by the owner :

[Provided that no such license shall be cancelled unless the owner of the licensed harbour craft has been given a reasonable opportunity of making his representations.]

[Inserted by G.S.R. 2006, dated 7th November, 1968]

(2)

[ Every order cancelling a licence shall be in writing and shall specify the reasons for such cancellation and shall be communicated to the owner of the licensed harbour craft.]

[Inserted by G.S.R. 2006, dated 7th November, 1968]

27.

Appeal from Deputy Port Conservator's Decision.

- An appeal shall lie from any decision of the Deputy Port Conservator under these rules, to the Conservator of the Port. Such appeal shall be preferred in writing within seven days from the date on which the decision of the Deputy Port Conservator appealed against has been communicated in writing to the party or parties concerned, and the decision of the Conservator thereof.

28.

[ Fees.

[Substituted by G.S.R. 931, dated 27th May, 1971]

- The following fees shall be leviable for survey, registration, licensing and inspection of boats, catamarans, and power driven craft, plying for hire, namely.]

Service

rendered

Boats

other than canoes and shoed-honies

Canoes

and shoed honies

Catamarans

plying for hire

Power

driven craft/upto 100 N.R.T.

1

2

3

4

5

Rs.

Ps.

Rs.

Ps.

Rs.

Ps.

Rs.

Ps.

(i)

For registrational of boat on the first occasion

5.00

1.50

1.50

40.00

(ii)

For each survey and measurement as required by the Harbour Rules

8.00

3.00

-

80.00

(iii)

For granting an annual licence for one year, 1st April to 31st

March of next year or part of an official annual inspection

5.00

1.00

-

40.00

A fee of Re. 1.00 is leviable for amending a licence or a register or for affecting a transfer of licence in favour of another owner. For the grant of a duplicate licence when the original is lost, mislaid or rendered illegible, a fee of Rs. 1.50 in case of boats and Re. 1.00 in the case of canoes, shoedhonies and catamarans shall be levied.

29.

Special provisions applicable to Steam Boats and Motor Boats licensed under these rules.

(1)

Every steam boat licensed under these rules shall, when in use, whether plying for hire or not, have on board the following certificated officers

(i)

If she has engines of not less than 100 N.H.P.

(a)

as her master, a person possessing a first class master's certificate granted under the Inland Steam-vessels Act, 1917, the Indian Merchant Shipping Act, 1923, or the Merchant Shipping Act, 1894 or a master's certificate granted either under the Indian Merchant Shipping Act, 1923, or under such regulations as the Central Government may, from time to time, prescribe or the Merchant Shipping Act, 1894, and (b) as her engineer, a person possessing an engineer's certificate granted under any of the aforesaid Acts or Regulations:

(ii)

If she has engines of less than 100 N.H.P. but not less than 40 N.H.P.-

(a)

as her master, a person possessing a second class master's certificate granted under the Inland Steam-vessels Act, 1917, the Indian Merchant Shipping Act, 1923, or the Merchant Shipping Act, 1894, or any such certificate as is referred to in sub-class (a) of Cl (i), and

(b)

as her engineer, a person possessing a first class engine driver's certificate granted under the Inland Steam-vessels Act, 1971, Indian Merchant Shipping Act, 1923, or the Merchant Shipping Act, 1894, or an engine-driver's certificate granted under the Indian Merchant Shipping Act, 1923, or under such regulations as the Central Government may, from time to time, prescribe or any such certificate as is referred to in sub Cl. (b) of Cl. (i).

Provided that a boat shall be deemed to have complied with this clause if she has as her master and engineer, a person possessing both a certificate referred to in sub-clause (a) and a certificate referred to in sub-clause (b); and

(iii)

if she has engines of less than 40 N.H.P.:

(a)

as her master, a person possessing a Serang's certificate granted under the Inland Steam-vessels Act, 1917, Indian Merchant Shipping Act, 1923 or the Merchant Shipping Act, 1894, or any such certificate as is referred to in sub-clause (a) of Cl (ii) and

(b)

as her engineer, a person possessing a second class engine-driver's certificate granted under the Inland Steam-vessels Act, 1917, Indian Merchant Shipping Act, 1923, or the Merchant Shipping Act, 1894, or any such certificate as is referred to in sub-clause (ii):

Provided that a boat shall be deemed, to have complied with this clause, if she has as her master and engineer a person

possessing both a certificate referred to in sub-clause (a) and a certificate referred to in sub-clause (b).

(2)

Every motor boat licensed under these rules shall, when in use whether plying for hire or not, have on board the following certificated officers :

(i)

if she has engines of not less than 565 B.H.P.:

(a)

as her engineer, a person possessing a motor Engineer's certificate granted under the Inland Steam-vessels Act, 1917, Indian Merchant Shipping Act, 1923, or the Merchant Shipping Act, 1894, or a certificate as a first class or second class engineer of a sea-going motor ship granted either under the Indian Merchant Shipping Act, 1923, or under such Regulations as the Central Government may, from time to time, prescribe, or the Merchant Shipping Act, 1894;

(b)

in case the engines are used for propulsion, as her master, a person possessing a first class master's certificate granted under the Inland Steam-vessels Act, 1917, Indian Merchant Shipping Act, 1923, or the Merchant Shipping Act, 1894, or a master's certificate granted either under the Indian Merchant Shipping Act, 1923, or under such regulations as the Central Government may, from time to time, prescribe or the Merchant Shipping Act, 1894.

(ii)

if she has engines of less than 565 B.H.P. but not less than 226 B.H.P.:-

(a)

as her engineer, a person possessing a first class motor engine driver's certificate granted under the Inland Steam-vessels Act, 1917, Indian Merchant Shipping Act, 1923, or the Merchant Shipping Act, 1894, or a certificate of an engine driver of a sea-going motor ship granted under the Indian Merchant Shipping Act, 1923, or under such Regulations as the Central Government may, from time to time, prescribe or any such certificate as is referred to in sub-clause (a) of Cl. (i) and

(b)

in case the engines are used for propulsion, as her master a person possessing a second class master's certificate granted under the Inland Steam-vessels Act, 1917, Indian Merchant Shipping Act, 1923, or the Merchant Shipping Act, 1894, or any such certificate as is referred to in sub-clause (b) of Cl. (i); and

(iii)

if she has engines of less than 226 B.H.P.:

(a)

as her engineer a person possessing a second class motor engine-driver's certificate granted under the Inland Steam-vessels Act, 1917, Indian Merchant Shipping Act, 1923, or the Merchant Shipping Act, 1894, or any such certificate as is referred to in sub-clause (a) of Cl (ii); and

(b)

in case the engines are used for propulsion, as her master, a person possessing a serang's certificate granted under the Inland Steam-vessels Act, 1917, Indian Merchant Shipping Act, 1923, or the Merchant Shipping Act, 1894, or any such certificate as is referred to in sub-clause (b) of Cl (ii):

Provided that a motor boat having engines of not more than 40 B.H.P. may have as her engineer, a person holding a permit granted by the Central Government or by any person duly authorised by the Central Government in this behalf;

Provided also that a motor boat having engines of not more than 20 B.H.P. the length of which measured from the fore part of the stem to the after part of the stern post does not exceed 30 feet may have as her master and engineer a person possessing both a certificate referred to in sub-clause (a) and certificate referred to in sub-clause (b) :

Provided further that a motor boat having engines of not more than 20 B.H.P. the length of which measured as aforesaid does not exceed 30 feet, which is used exclusively for personal recreation by the owner or his family or friends need not carry a certificated master or engineer but may be navigated by the owner or any other person possessing a permit granted by the Central Government or by any person duly authorised by the Central Government in this behalf.

(3)

[ Any person who has served for a period of 3 years on the 1st January, 1948 as master, serang, engineer or engine driver of a steam-boat or motor-boat plying in the port and is not in possession of the certificate of competency required under sub-rule (1) or sub-rule (2), as the case may be, may be granted by the Deputy Port Conservator and the Harbour

Master in the case of Master or serang and by the Chief Mechanical Engineer in the case of engineer or engine driver, without examination and on payment of the fees prescribed below, a certificate to the effect that he is, by reason of his having so served, competent to act as master, serang, engineer or engine driver on board such steam-boat or motor-boat while plying in the port:]

[Substituted by G.S.R. 931, dated 27th May, 1971]

First

Class Master's Certificate.

Rs.

20.00

Second

Class Master's Certificate.

Rs.

15.00

Serang's

Certificate.

Rs.

10.00

Engineer's

or Motor Engineer's Certificate.

Rs.

20.00

First

Class Engine-Driver's or First Class Motor

Engine

Driver's Certificate

Rs.

15.00

Second

Class Engine-Driver's or Second Class

Motor

Engine Driver's Certificate.

Rs.

15.00

Engine

Driver Permit.

Rs.

10.00

(4)

The Central Government may in special circumstances:-

(a)

exempt any class of steam boats or motor boats from the requirements of sub-rule (1) or sub-rule (2) as the case may be, and

(b)

lay down the qualifications required of the officers employed on such boats.

30.

(1)

Every motor boat licensed under these rules shall be provided with a sand box and an approved patent fire extinguisher of suitable capacity for extinguishing fire, and the owner shall keep it free from oil refuse.

(2)

Noisy engines of all motor boats licensed under these rules while plying within the Port shall be fitted with efficient silencers.

Form (Appendix) A

[See rule 4]

Licence granted to .....owner of boat measuring.....feet long.....feet broad and.....feet deep  
.....egistered tons, to carry cargo (other than animals) and /or passengers or animals to the extent specified  
below, to and from the shipping at or off the Port of Vizagapatnam under the restrictions and subject to the penalties laid  
down in the Harbour Craft Rules sanctioned by Government.

Date

of Registry

Name

number and description of Harbour craft

Rig.

and equipment

When

built and where

When

repaired last and in what condition

Cargo

wothout Passengers

Number

of passengers without cargo

Number

of crew

Particulars

respecting the owner or owners of the boat

Particulars

respecting to tindal of the boat

Period

for which the licence is to be in force

Remarks

Number

of animal & presumed weight

Weight

of cargo other than animals

Name

or names

Occupation

Place

or places or residence

Name

Place

of residence

1

2

3

4

5

6(a)

6(b)

7

8

9

10

11

12

13

14

15

In

fine weather.

In

fine weather.

In

fine weather.

In

fine weather. Tindal

In

rough weather

In

rough weather

In

rough weather

In

rough weather Tindal Lascar

Dated

.....

Registering

Officer

Note.

- Two children under 12 years of age=1 adult.

Extended

to-

Ditto

Ditto

Ditto

Ditto

Ditto

Ditto

Ditto

Ditto

Ditto

Ditto

Endorsement

for change of Tindal

Form (Appendix) B

[See rule 10]

Register showing the names, ages, places of residence and thumb impression of tindals employed in the Port of Vizagapatnam for the year 19.

Date

of registry

Number

of Harbour Craft

Names

Age  
Place  
of residence  
Thumb  
impression  
Remarks  
Years  
Months  
Days  
Related AI tags, queries and research notes  
Translation